

1. SCOPE OF SERVICES PROVIDED

- 1.1 NIMROD will provide annual fire equipment maintenance services which will include:
- Inspection of fire equipment and / or fire alarm system at the client's premises.
 - If required, refurbishment of fire equipment and /or fire alarm to our minimum standards (i.e. repaint, replace instruction labels, supply spares and wall brackets, install equipment and devices etc.)
 - If required, refill and pressurize fire extinguishers and replace any worn-out parts and spares.
 - For addressable fire alarm systems, the client must provide us with the panel manual, software and any connecting cable / accessories for reprogramming the system if required.
 - The client is responsible for informing all occupants of the premises when testing of the fire alarm system is to be carried out.

2. TERM OF CONTRACT

- 2.1 This contract commences on the date of signing and automatically renews for successive one-year terms, unless terminated by either party.

3. TERMINATION

- 3.1 Either party may terminate this contract with thirty (30) days written notice.
- 3.2 In the event of a termination, the service charge is non-refundable and any outstanding dues must be cleared.
- 3.3 NIMROD may curtail further services in the event of non-payment within our trading terms which are 30 days from the date of the invoice. Interest will accrue at 3% per month on all overdue amounts.

4. FEES AND PAYMENT

- 4.1 The client agrees to pay NIMROD:
- Annual service charge upfront for maintenance services based on the service schedule
 - Additional charges as and when accrued for replacement, refurbishment and installation of fire equipment, replacement parts, spares, refills, special services, emergency call-outs, late fees, and any storage or disposal costs
- 4.2 All fees and charges are subject to statutory taxes.

5. INFORMATION DISCREPANCIES

- 5.1 NIMROD reserves the right to adjust the services and charges if it discovers discrepancies in the information provided by the client that affect the scope or nature of the services.
- 5.2 In this case, the client accepts and agrees to pay for the additional charges immediately.

6. LIABILITY

- 6.1 NIMROD is not liable for any loss, damage, injury, or death arising out of the use or malfunction of the fire equipment / fire alarm, or any damage to the client's premises, property, or equipment.
- 6.2 Any misuse, tampering, or interference with fire equipment or alarms, except for use in real-life situations, absolves NIMROD from any liability.

7. CLIENT ACKNOWLEDGEMENT AND COMMENTS

- 7.1 After each service visit, the client must sign (and Company rubber stamp) NIMROD's service sheet, confirming that the scheduled service has been undertaken.
- 7.2 If the client, for any reason, does not sign / rubber stamp the service sheet, NIMROD reserves the right to consider its obligations met as per the terms of this contract.
- 7.3 If the client is dissatisfied with the service, the client must still sign and rubber stamp the service sheet, and express any concerns or feedback directly on the service sheet and via email within 7 days of the service.
- 7.4 By signing the service sheet, the client does not waive their right to notify NIMROD of any dissatisfaction within the timeframe specified and does not exempt the client from fulfilling their payment obligations.

8. USE OF FIRE EQUIPMENT / SPECIAL SERVICE

- 9.1 If fire equipment is used, the client should inform NIMROD immediately and request a special service.

9.2 Special service due to a missed service or used equipment will be charged at normal contract rates.

9. FIRE TRAINING AND AUDIT SERVICES

- 17.1 Fire training and audit services can be arranged separately at the prevailing rates.
- 17.2 The client is solely responsible for providing a safe area for “live” fire demonstrations.
- 17.3 NIMROD staff reserve the right to decline practical demonstrations if they deem them unsafe.

10. IN-HOUSE SERVICE FOR EQUIPMENT

- 11.1 Equipment that has been received in our workshop for service will be subject to labour charges, minimum diagnosis charge and collection / delivery charges depending on the collection / return location
- 11.2 Clients who do not approve our service/repair estimate or fail to collect ready equipment within 2 weeks of our notice are liable to storage charges **of 100/- plus VAT per unit, per day.**
- 11.3 A minimum charge **of 4000/- plus VAT** applies for pumps that require inspection/repair at our workshop.

11. EQUIPMENT ACCEPTANCE AND RESPONSIBILITY

- 12.1 Upon delivery, the client must promptly inspect the fire equipment and sign our delivery note with company rubber stamp, confirming acceptance of the delivery

12. UPCOUNTRY / LODGES / REMOTE SERVICES

- 13.1 Bi-annual up-country maintenance services are scheduled during the months of April/May and October/November, as part of the regular maintenance contract.
- 13.2 Special trips can be requested in any other month however these will be subject to additional charges.
- 13.3 Up-country emergency service calls will incur extra transport costs, accommodation, park fees, and out-of-Nairobi expenses at NIMROD’s discretion.
- 13.4 Lodges/remote areas must provide meals and accommodation for our technician(s) during the entire stay of the service as a goodwill gesture and **with no charges levied to NIMROD.**
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13. CANCELLATION POLICY AND ADMINISTRATION FEES

- 14.1 If a service cannot be carried out through no fault of this company such as not acknowledging e-mail notifications, appointment confirmations, refusal of admission by your staff, closure of premises or non-availability of your personnel to escort our team during their service etc. It will be deemed that NIMROD has met the service obligation.
- 14.2 An administration fee of **1000/- + VAT** will apply for any reschedules or special arrangements.

15 Emergency calls are charged at 3000/- per visit, plus 2000/- per hour of part thereof within Nairobi and surrounding areas.

16 Extra charges may be applicable for equipment not readily accessible and where we may require any scaffolding or any other special equipment to access the units such as Detectors placed extremely high in warehouses / buildings.

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14. OTHERS

- 15.1 NIMROD reserves the right to review maintenance charges and adjust prices annually.
- 15.2 Proposed adjustments shall be communicated in writing.

16 Nimrod reserves the right to re-negotiate any terms and service charges under circumstances entailing extra work not accounted for on this contract.

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Both parties agree to keep confidential any proprietary or sensitive information.